

AMENDMENT NO. 4 TO THE AGREEMENT FOR PROFESSIONAL SERVICES BY INDEPENDENT CONTRACTOR

THIS AMENDMENT NO. 4 TO AGREEMENT FOR PROFESSIONAL SERVICES BY INDEPENDENT CONTRACTOR ("Amendment No.4") is made by and between the CITY OF BEAUMONT ("CITY"), a general law city, and PLACEWORKS, INC., a California S Corporation (hereinafter called "CONTRACTOR") is effective as of this day: July 21, 2026.

RECITALS

This Amendment is made with respect to the following facts and purpose that the parties agree are true and correct:

- A. City and Contractor entered into that certain Contract dated April 5, 2022 for the purpose of providing provide landscape, architecture, and engineering design services and construction documents for the Capital Improvement Project P-10: Stewart Park Redevelopment and Skate Park (Project Services ("Agreement") as approved by City Council on April 5, 2022.
- B. City and Contractor have entered into an Amendment No. 1 to the Agreement dated July 15, 2024 to modify the Scope of Services, extend the Term of the Agreement to April 5, 2026, and increase the Contract Sum to Eight Hundred Two Thousand Two Hundred Six Dollars (\$802,206.00) as approved by City Council on June 18, 2024.
- C. City and Contractor have entered into an Amendment No. 2 to the Agreement dated November 5, 2024 to modify the Scope of Services and increase the Contract Sum to Eight Hundred Thirty Thousand Nine Hundred Seventy-One Dollars (\$830,971.00), as approved by City Council on November 5, 2024.
- D. City and Contractor have entered into an Amendment No. 3 to the Agreement effective February 3, 2026 to extend the Term of the Agreement to April 5, 2028, as approved by City Council on February 3, 2026.
- E. City and Contractor now desire to amend the Agreement to modify the Scope of Services, extend the Term of the Agreement to April 30, 2029, and increase the Contract Sum to Nine Hundred Ninety-Two Thousand Seven Hundred Eighty-Eight Dollars and Zero Cents (\$992,788.00).

The Parties therefore agree follows:

- 1. Amended Terms. The Agreement is hereby amended as follows:
 - 1.1 The Scope of Services set forth in Exhibit A to the Agreement is hereby amended to include the Services set forth in Attachment A, attached hereto and incorporated herein.

- 1.2 The maximum compensation for the Services performed pursuant to this Amendment No. 4 shall not exceed One Hundred Sixty-One Thousand Eight Hundred Seventeen Dollars and Zero Cents (\$161,817.00) thereby increasing the Contract Sum, as set forth in the Agreement, to Nine Hundred Ninety-Two Thousand Seven Hundred Eighty-Eight Dollars and Zero Cents (\$992,788.00).
- 1.3 The Term of the Agreement of the Agreement, is hereby extended through April 30, 2029, unless sooner terminated or extended as provided in the Agreement.

2. Miscellaneous Provisions

- 2.1 Continued Effect of Agreement. Except as amended by this Amendment No. 4, all provisions of the Agreement, as amended by Amendment Nos. 1, 2, and 3, shall remain unchanged and in full force and effect. From and after the date of this Amendment No. 4, whenever the term “Agreement” appears in the Agreement, it shall mean the Agreement, as amended by Amendment Nos. 1 through 4. In the event of a conflict between the provisions of this Amendment No. 4 and the provisions of the Agreement or Amendments No. 1 through 4, the provisions of this Amendment No. 4 shall control.
- 2.2 Consideration for Amendment. The parties hereby agree that they have each received adequate and independent consideration for the modifications to the Agreement set forth in this Amendment No. 4.
- 2.3 Authority. The persons executing this Amendment No.4 on behalf of the parties hereto warrant that (i) such party is duly organized and existing, (ii) they are duly authorized to execute and deliver this Amendment No. 4 on behalf of said party, (iii) by so executing this Amendment No. 4, such party is formally bound to the provisions of this Amendment No. 4, and (iv) entering into this Amendment No. 4 does not violate any provision of any other agreement to which said party is bound.
- 2.4 Counterparts. This Amendment No. 4 may be signed in any number of counterparts, each of which will be an original, but all of which together will constitute one instrument.
- 2.5 Electronic Signatures. Each Party may adopt as its signature an electronic identification consisting of a symbol or code that is affixed to or contained in each document transmitted by such Party (“electronic signature”). The Parties hereto hereby agree that electronic signatures are acceptable, shall have the same force and effect under the law as original wet signatures, and shall be sufficient to verify that the Parties have executed this Agreement and such other documents transmitted by the Parties.

[SIGNATURE PAGE FOLLOWS]

**SIGNATURE PAGE TO AMENDMENT NO. 4 TO THE AGREEMENT FOR
PROFESSIONAL SERVICES BY INDEPENDENT CONTRACTOR**

IN WITNESS WHEREOF, the Parties are signing this Amendment No. 4 on the date stated in the introductory clause.

CITY OF BEAUMONT

PLACEWORKS, INC.

Jessica Voigt
City Mayor

NAME: Kara Kosel

TITLE: Vice President of Finance

City Council Approval: _____

ATTEST:

Nicole Wheelwright,

Deputy City Clerk

APPROVED AS TO FORM:

Slovak, Baron, Empey, Murphy & Pinkney
LLP

John O. Pinkney

City Attorney

ATTACHMENT "A"

July 17, 2026

Vincent Lopez
Project Manager – Capital Projects
Public Works Department
City of Beaumont
550 E. Sixth Street, Beaumont, CA 92223
transmitted via email: VLopez@beaumontca.gov

Subject: Additional Service Request #2 – Stewart Park

Dear Vince,

This exhibit describes the requested fee adjustment to complete bid-level construction documents for Phase 2 construction of Stewart Park and provide construction administration for Phase 2 as a separate mobilization from Phase 1. As part of our existing scope, we completed construction documents for the entire park, which included a base bid and three bid alternates. Bid Alternate Number 1 included the “Phase 2” area and Bid Alternate Number 3 included the skate park. We understand that the City has received additional federal funding that requires that Phase 2 construction and the skate park be bid as a separate project.

Although the design will not change, additional scope requested by our team to develop a separate standalone bid package includes:

- Removing all Phase 1 improvements from the plans and specifications.
- Reformatting plan sheets to only include the Phase 2 improvements and updating sheet index and references.
- Developing a new “existing conditions” plan set that clarifies for the contractor work completed in Phase 1. This plan will be developed without a new survey and will only reflect the Phase 1 plans and any changes approved during construction of Phase 1.
- Updating plans references using California Building Code (CBC) 2022 to CBC 2025.
- Updating plans to reflect submittals and RFIs in Phase 1.
- Providing a precise grading plan associated with Phase 2 improvements based on anticipated finish conditions from Phase 1. The precise grading plan will extend to the existing pavement surrounding Phase 2 improvements or 40 feet.
- Revising the layout for the picnic structures to provide three smaller structures in place of two larger ones.
- Revising the layout for the skate park to incorporate additional paved area.
- Developing new Erosion Control Plan for Phase 2 separate from Phase 1 work.

We understand that this plan set will need to be reviewed and signed by the City Engineer. We have assumed one round of revisions associated with this review.

As part of this work, the PlaceWorks team is adding American Ramp Company to our team to develop drawings for the skate park. We understand there is a preference to revise the design for the skate park. American Ramp Company shall provide both conceptual design and construction documents for the project.

Following is a description of the tasks. Please note that Task 8 reflects the next task number following previously contracted work.

SCOPE OF SERVICES

Task 8. Phase 2 – Construction Documents

8.1 Skate Park – Conceptual Design

American Ramp Company shall provide a revised concept for the skate park utilizing on-grade prefabricated skate park components. As part of the initial design, American Ramp shall create preliminary skatepark concept, verify design is responsive to site conditions and budget, and provide illustrations of the skatepark design. American Ramp will additionally provide a general cost estimate based on unit sums for proposed skatepark and provide opinion of construction costs.

Deliverables: Skate Park Concept illustrations

8.2 Phase 2 – 100% PS+E

Utilizing the existing approved Bid Plan for Stewart Park and revisions associated with RFIs from the construction of Phase 1, the PlaceWorks team shall develop a standalone bid set for Phase 2 improvements, including revised plans, specifications, and estimate (PS+E).

The plans shall be updated to include all construction currently underway for Phase 1 as the “existing condition” for the contractor, titled “Phase 1 Completion Plan.” The plans will include all design work proposed for Phase 1 along with approved changes to date for Phase 1. The City shall provide language related to contractor responsibility related to verifying existing conditions for the PlaceWorks team to add to plans.

The plans shall only provide construction information for Phase 2 elements, including the basketball/pickleball courts, picnic shade structures, second playground, skate park, and stage, as well as pathways, planting, and lighting with the southern half of Stewart Park.

The plans are anticipated to include:

Table 1 Plan Sheets		
Sheet Title	Responsibility	Sheets
Title Sheet and Location Map	PlaceWorks	1
Notes, Legend and Abbreviations	PlaceWorks	1
Phase 1 Completion Plan (Existing Conditions)	BKF	2
Phase 2 Demolition Plan	BKF	2
Erosion Control Plans @1:20	BKF	2
Grading & Drainage Plans @1:20	BKF	2
Site Improvements/Horizontal Control Plans @1:20	BKF	2
Civil Construction Details	BKF	3
Landscape Construction Plans @1:20	PlaceWorks	2
Landscape Details	PlaceWorks	6
Electrical Plans @1:20	PBS Engineers	4
Electrical Details	PBS Engineers	4
Skate Park Plans @1:10	American Ramp Company	1
Skate Park Details	American Ramp Company	2
Structural General Notes	Spire Structural	1
Structural Plans and Details	Spire Structural	3
Irrigation Plans @1:20	Sweeney + Associates	4
Irrigation Details	Sweeney + Associates	2
Planting Plan @1:20	PlaceWorks	4
Planting Details	Sweeney + Associates	2
Pre-Manufactured Structure Schematics	PlaceWorks	4

The plans shall include two bid alternates:

1. Stage structure and slab
2. Skate park

The plans will be accompanied by technical specifications in CSI format and a cost estimate.

The PlaceWorks team will submit the plans for review by the City Engineer. Based on City's review comments, PlaceWorks will make minor revisions to the 100% submittal and refine it to a Final set for going to bid purposes.

Deliverables: 100% PS+E; Final PS+E (Bid Set)

Task 9. Phase 2 – Construction Administration

9.1 Phase 2 - Construction Administration

Construction of Phase 2 as a separate mobilization is anticipated to extend the construction period by six (6) months. The PlaceWorks team will continue to assist the City with Construction Administration during this phase, including the following tasks:

- **Pre-Construction Meeting.** The PlaceWorks team will attend a pre-construction meeting with City staff and the Contractor to review the drawings, specs, and coordination requirements.
- **Project Coordination Meetings.** PlaceWorks will participate in one project coordination meeting per week of the anticipated Phase 2 construction phase. It is anticipated that the project coordination meeting will held virtually with one coordination meeting per month occurring on site or in coordination with construction progress monitoring or field review.
- **Construction Site Visits.** The PlaceWorks team will conduct site visits to review the required mock-ups and field samples as indicated in the Technical Specifications. It is anticipated that PlaceWorks will conduct one site visit per month with up to five (5) additional site visits by the PlaceWorks team throughout construction.
- **Submittal Responses.** The PlaceWorks team will review submittals for conformance to plans and specifications and prepare a written response for each submittal.
- **RFIs and Supplemental Information.** The PlaceWorks team will respond to questions from the Contractor in the field, as requested by the City. PlaceWorks will respond in a timely and efficient manner to the contractor's requests for additional information. If clarification on design intent is needed or a changed condition is found, the PlaceWorks team will develop Supplemental Information material for the contractor as needed.

- **Punchlist.** The PlaceWorks team will develop a draft punch list for the field inspector and contractor's review following a pre-final site visit. PlaceWorks will participate in a final site visit to go over the items in the punch list, once the contractor has indicated the list is complete.

Costs

As shown in Table 2, the estimated cost to complete the scope of work described in this proposal is \$161,817.

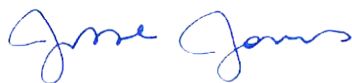
Assumptions

The additional fee request incorporates the following assumptions:

- The City shall provide and compile General Conditions and Supplemental Conditions for the project bid.
- All site furnishings and structures shall be purchased and installed by the contractor. Structural drawings for the stage structure, picnic structures, and playground equipment shall be a deferred submittal for the contractor and shall not be included in the PlaceWorks' teams plans.
- No additional wet utility work (sewer and water) will be required.
- No coordination with utility agencies is included within the scope.
- The City shall develop bid schedule.
- A new geotechnical report will not be required.
- No additional water quality management plan documents are required.
- No additional survey or field observations will be required to develop the Phase 2 - 100% PS+E. The City shall provide language related to contractor responsibility related to verifying existing conditions for the PlaceWorks team to add to plans. The consultant team shall not be responsible for changes in existing conditions and proposed design.

Respectfully submitted,

PlaceWorks



Jesse Jones
Associate Principal

The PlaceWorks Team

Stewart Park - Contract Modification #2

TABLE 2. COST PROPOSAL

		PLACEWORKS				SUBCONSULTANTS					10% Subconsultants Markup	SUBCONSULTANTS TOTAL	TOTAL TASK BUDGET
		Jesse Jones	Bryan Groves			BKF	PBS	Spire	Sweeney	American Ramp			
		Associate Principal <i>PIC</i>	Associate <i>Landscape Designer</i>			<i>Civil Engineering</i>	<i>Electrical Engineering</i>	<i>Structural Engineering</i>	<i>Irrigation</i>	<i>Skate Park</i>			
Hourly Rate:		\$240	\$190	Place- Works Hours	PLACE- WORKS TOTAL								
Task 8. Phase 2 – Construction Documents													
8.1	Skate Park – Conceptual Design			0	\$0	\$0	\$0	\$0	\$0	\$7,000	\$700	\$7,700	\$7,700
8.2	Phase 2 – 100% PS+E	40	96	136	\$27,840	\$33,220	\$7,600	\$6,275	\$13,200	\$16,000	\$7,630	\$83,925	\$111,765
Task 8. Subtotal		40	96	136	\$27,840	\$33,220	\$7,600	\$6,275	\$13,200	\$23,000	\$8,330	\$91,625	\$119,465
Task 9. Phase 2 - Construction Administration													
2.1	Phase 2 - Construction Administration	96		96	\$23,040	7,782	3,582	3,786	2,406	0	\$1,756	\$19,312	\$42,352
Task 9. Subtotal		96	0	96	\$23,040	\$7,782	\$3,582	\$3,786	\$2,406	\$0	\$1,756	\$19,312	\$42,352
Labor Hours Total		136	96	232									
Labor Dollars Total		\$32,640	\$18,240		\$50,880	\$41,002	\$11,182	\$10,061	\$15,606	\$23,000		\$110,937	\$161,817
PlaceWorks Percent of Total Labor		58.6%	41.4%	100.0%									
GRAND TOTAL													\$161,817